

Court No. - 29

Case :- WRIT - C No. - 42357 of 2024

Petitioner :- M/S Skmr Healthcare

Respondent :- Director Electrical Safety, Govt Of Uttar Pradesh
Lucknow And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Vivek Kumar Birla, J.

Hon'ble Kshitij Shailendra, J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner, Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel for the respondent no.1 and Shri Rakesh Kumar Tripathi, holding brief of Shri Narendra Kumar Tiwari, learned counsel for the respondent no.2.

2. Present petition has been filed with following prayer:-

"i) Issue a writ of mandamus directing respondents no.1 to reimburse the amount of electricity duty charged in the bill of petitioner and to give exemption from electricity duty for ten years from ensuring bills of petitioner.

ii) Issue writ of mandamus directing respondent no.2 to install check meter at the premises of petitioner and revise the bill from period 22.07.2022 to 23.01.2023 on the average of the test result without surcharge and extend benefit as numerated above."

3. Although certain prayers regarding exemption from electricity duty or its reimbursement have been made in the writ petition, learned counsel for the petitioner, during course of argument confines his prayer to the effect that respondent no.2 be directed to consider his representation/application dated 24.09.2024 (Annexure-2 to the writ petition) purported to be under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

4. Learned counsel appearing for the Electricity Department, however, submits that the prayers made in the said representation are beyond the purview of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

5. Be that as it may, admittedly no order having being passed on the said representation, without examining the maintainability or

merits of the said representation, the present petition stands **disposed of** with a direction to the respondent no.2-Executive Engineer, Purvanchal Vidhut Vitran Nigam Ltd., E.D.D.-1, Allahabad to consider the representation/application dated 24.09.2024 and pass appropriate order thereon within a period of one month from the date of production of a certified copy of this order.

Order Date :- 19.12.2024

Nitendra